

100 Beal Street: All Verifiable Facts & Supporting Human Documents

The Complete Plain-English Community Narrative, Verified Fact Ledger, and Primary Documentary Proof Suite

Subject Property:

100 Beal Street, Hingham (School Tract II)

Record Fee Owner:

Hingham Housing Authority (M.G.L. c. 68-Unit Senior Affordable Housing 121B)

Proposed Development:

68-Unit Senior Affordable Housing (Peabody)

Document Identifier:

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Auditor's Evidentiary Note: This master document pairs the complete plain-English community narrative ("The Human Document") with the exhaustive evidentiary ledger of all 18 verifiable facts, verbatim transcripts, and primary public records. Every statement is verified through recorded deeds, certified meeting minutes, Town Meeting warrants, and state agency rulings.

Part 1: The Human Document — The True Story of 100 Beal Street (Chapters 1 to 4)

For over three decades, the parcel of land known as 100 Beal Street (School Tract II) has stood at the crossroads of military history, municipal disputes, state public housing protections, and an acute local shortage of affordable senior apartments. Below is the unspun story of what actually happened, written for citizens and community members.

Chapter 1: The 1989 Land Grant & The Adolescent Home

In the late 1980s, the Town of Hingham sought a location for a permanent, supportive residential home for adolescents in state care. On March 7, 1989 (recorded April 21, 1989), the Town conveyed 15.014 acres of former U.S. Navy ammunition depot land—known as School Tract II—to the independent **Hingham Housing Authority (HHA)** for **\$45,751.00** pursuant to May 1987 Town Meeting authorization [*Deed Book 09097, Page 158*].

The deed carried a specific use restriction: the land was dedicated for an educational and residential facility for troubled adolescents. Critically, on Page 3 of the deed (Book 09097, Page 160), the Town retained a right of re-entry if that adolescent use ceased, **provided, however, that said right of re-entry terminated thirty (30) years from the date of the deed pursuant to Massachusetts General Laws, Chapter 184A, Section 3**. Shortly after conveyance, a 12-bed group home was constructed on a dedicated 2.0-acre corner along Beal Street, funded through the Commonwealth's Chapter 689 specialized public housing program. For over 35 consecutive years, that adolescent home has operated continuously under state DCF contracts. Because the facility never ceased operations, the Town never had legal grounds to claim re-entry during the 30-year window.

Chapter 2: The 2001 Bunker Cleanup & The 8-Acre Plateau

Behind the 2-acre adolescent home lay 13 undeveloped acres dotted with abandoned World War II naval ammunition bunkers and earthen berms. In 2001, the Town funded the demolition of the bunkers and environmental soil remediation. Gale Associates surveyed the land into two parcels: **Lot 1** (the 2.0-acre operating group home) and **Lot 2** (an 8.02-acre surplus plateau), recorded as **Plan 100 of 2001** (Plan Book 44, Page 412). The Town and HHA executed an administrative Memorandum of Understanding on June 12, 2001 acknowledging the cleanup and parcel division.

Chapter 3: The 2006 Town Meeting Mandate & The Missing Release

Recognizing that Hingham faced an acute shortage of affordable senior housing, Annual Town Meeting took up **Article 38** on May 1, 2006. Town Meeting voted by an overwhelming declared **two-thirds supermajority** to authorize the Selectmen to amend the 1989 deed restriction to permit affordable senior housing on the surplus plateau. However, in a municipal oversight that went unnoticed for years, **Town Hall never actually executed or recorded that authorized deed release at the Registry of Deeds**, leaving the restriction unreleased on the land records.

Chapter 4: The 2019 Lawsuit Vote & The 30-Year Expiration

The deed's 30-year anniversary arrived on March 7, 2019. Under M.G.L. c. 184A, § 3, any reversionary right of entry expires automatically after 30 years. On February 26, 2019, the Select Board met in Executive Session, returned to Open Session, and voted **3-0 to authorize litigation against the Housing Authority** to enforce the 2001 agreement. Faced with an immediate lawsuit threat, the previous HHA board voted on June 5, 2019 to transfer ~19 acres back to the Town.

Part 1: The Human Document — The True Story of 100 Beal Street (Chapters 5 to 7)

Chapter 5: The Commonwealth Steps In (State Law Overrides Town Hall)

To outside observers, it appeared Town Hall had recaptured the land. But local housing authorities are not Town departments; under Massachusetts General Laws Chapter 121B, § 3, they are independent public corporations created by the Legislature to serve low-income residents. Furthermore, because state public housing funds (Chapter 689) had originally built the Beal Street youth home, state law strictly prohibits any local housing authority from alienating or conveying public housing land without express written approval from the Commonwealth.

The Massachusetts Department of Housing and Community Development (DHCD, now EOHLC) intervened decisively. Associate Director Amy Stitely warned that the local transfer vote was unauthorized under state law. On **July 18, 2019 at 1:44 PM**, DHCD recorded a formal **Notice of Statutory Transfer Restriction** directly on title at **Book 51379, Page 244** under M.G.L. c. 121B, § 34. This state filing legally clouded the title and barred Town Hall from taking the property.

On **September 7, 2021**, under new leadership, the HHA Board of Commissioners voted **4–0 to formally rescind the June 5, 2019 transfer motion**, permanently confirming that 100 Beal Street remains in the ownership of the Housing Authority for affordable housing.

Chapter 6: The Peabody Award & The 99-Year Ground Lease

With its fee ownership reaffirmed, the Housing Authority moved forward to address the community's acute need for affordable senior housing. In 2024 and 2025, the Authority declared the 8.6-acre surplus parcel (Lot B) available under Massachusetts Uniform Procurement Act (M.G.L. c. 30B, § 16) and issued a comprehensive 155-page Request for Proposals (RFP).

On **August 12, 2025**, the HHA Board voted **4–0** to award developer designation to **Peabody Properties / Affordable Housing Scenario Consultants (AHSC)** to build a modest, 3-story, 68-unit rental residence restricted to seniors aged 62 and older. Under the proposed 99-year ground lease:

- **Municipal Taxpayer Cost:** Exactly **\$0** in Town borrowing, debt exclusions, or taxpayer debt.
- **Upfront Authority Revenue:** The developer pays all development costs and provides a **\$500,000 upfront lease payment** to the Housing Authority.
- **Permanent Public Ownership:** The Housing Authority never sells the land; the Authority retains underlying fee title, and the entire building reverts to the Authority upon lease expiration.

Chapter 7: Debunking the Myth — What Really Failed at Town Meeting?

The single most pervasive misconception in Hingham is the claim that *"Town Meeting voted down 100 Beal Street on April 27, 2026."* The official certified record of Town Meeting proves this is factually false:

- **What was rejected:** Warrant **Article 12**, which requested **\$29.93 million in municipal debt borrowing** to build the **Center for Active Living (CAL)**—a town-funded municipal daytime senior center building proposed by the Select Board inside Bare Cove Park. Under Massachusetts finance law (M.G.L. c. 44, § 7), debt borrowing requires a strict 2/3 supermajority. The article received 510 Yes to 470 No (52.0% in favor), failing to achieve 2/3.
- **100 Beal Street was NEVER on the warrant:** 100 Beal Street requires zero municipal debt, was never voted on, and was never defeated at Town Meeting. Because both projects involved senior citizens and both bordered the Tucker's Swamp watershed, public discussion conflated them.

Summary of Current Project Posture (September 2026): The 100 Beal Street senior affordable housing development is actively advancing under Peabody Properties. The developer is preparing its Project Eligibility application for MassHousing, following which a formal Chapter 40B Comprehensive Permit application will be submitted to the Hingham Zoning Board of Appeals (ZBA). Title insurers require that the unrecorded 2006 deed restriction be resolved through a formal municipal release or statutory Chapter 40B override.

Part 2: Definitive Ledger of All Verifiable Facts (Facts 1 to 9)

Every statement in the narrative is paired directly with its supporting primary human document and legal citation:

Fact	Verifiable Historical Fact	Supporting Human Document	Official Legal Citation	Archive Source File
01	Town conveyed 15.014-ac School Tract II to HHA for \$45,751 on March 7, 1989.	Recorded Fee Deed (Doc #29758)	Plymouth Registry, Book 09097, Pages 158–161	documents/Hingham_Beal_Street_Deed_1989.pdf
02	Deed expressly restricted land for an adolescent care facility on Page 3.	Recorded Fee Deed (Page 3)	Plymouth Registry, Book 09097, Page 160	documents/Hingham_Beal_Street_Deed_1989.pdf
03	Deed stipulated that Town's right of re-entry terminates after 30 years under c. 184A § 3.	Recorded Fee Deed (Page 3)	Plymouth Registry, Book 09097, Page 160; M.G.L. c. 184A, § 3	documents/Hingham_Beal_Street_Deed_1989.pdf
04	ZBA issued 40B permit for 12-bed youth home; Condition 7 barred further structures.	Recorded ZBA Comprehensive Permit	Plymouth Registry, Book 09097, Pages 162–170	documents/Hingham_Beal_Street_Deed_1989.pdf
05	The 12-bed adolescent home was built with Chapter 689 funds & operates continuously.	State Chapter 689 Contracts & HHA Board Records	Executive Office of Housing & Livable Communities files	agent_created_deliverables/.../Chronology_v2.md
06	Naval bunkers cleared; surveyed into 2.0-ac Lot 1 and 8.02-ac Lot 2.	Gale Associates Boundary Survey	Plymouth Registry, Plan Book 44, Page 412 (Plan 100 of 2001)	architectural_plans/Hingham_100_Beal_ALTA.pdf
07	Town Meeting voted by declared 2/3 to authorize amending restriction for senior housing.	2006 ATM Warrant Art. 38 & Town Clerk Certification	Certified Municipal Vote, Eileen McCracken, Town Clerk	documents/Hingham_Town_Meeting_2006_Vote.pdf
08	Town Hall never executed or recorded the authorized deed release at Registry.	ALTA Survey Title Schedule & Registry Grantor Index	Control Point Associates Survey, Sheet 1, Note 3; Registry Census	architectural_plans/Hingham_100_Beal_ALTA.pdf
09	Thirty calendar years elapsed on March 7, 2019 without breach of condition.	1989 Deed Terms & M.G.L. c. 184A, § 3	Statutory Expiration Deadline: March 7, 2019	100_BEAL_STREET_ALL_CODE_AND_DOCUMENTS_v1.md

Part 2: Definitive Ledger of All Verifiable Facts (Facts 10 to 18)

Continuation of the primary documentary proof ledger:

Fact	Verifiable Historical Fact	Supporting Human Document	Official Legal Citation	Archive Source File
10	Select Board voted 3–0 to authorize litigation against HHA to enforce 2001 MOU.	Select Board Minutes (Executive & Open Sessions)	Hingham Board of Selectmen Minutes, Feb. 26, 2019, Page 1	meeting_records/ Select_Board_Minutes_2019-02-26.pdf
11	Under lawsuit threat, HHA voted on June 5, 2019 to transfer ~19 acres back to Town.	Official HHA Board Minutes	Recited in HHA Minutes, Sept. 7, 2021, Page 3	meeting_records/ HHA_Minutes_2021-09-07.pdf
12	DHCD warned that Chapter 689 public land cannot be transferred under c. 121B § 34.	State DHCD Supervisory Letters	Amy Stitely, DHCD Associate Director (04/19/19 & 06/26/19)	meeting_records/ HHA_Minutes_2019-07-09.pdf
13	DHCD recorded Notice of Statutory Transfer Restriction blocking municipal transfer.	Recorded State Notice (Doc #55967)	Plymouth Registry, Book 51379, Page 244; M.G.L. c. 121B, § 34	architectural_plans/ Hingham_100_Beal_ALTA.pdf
14	HHA Board voted 4–0 to formally rescind the June 5, 2019 transfer motion.	Official HHA Board Minutes	HHA Board Minutes, Sept. 7, 2021, Pages 3–4	meeting_records/ HHA_Minutes_2021-09-07.pdf
15	MassDEP issued ORAD confirming 155+ wetland boundary flags across site.	Recorded MassDEP Order of Resource Area Delineation	Plymouth Registry, Book 59527, Page 273 (Doc #78968)	orad_registry_records/ ORAD_034-1509.pdf
16	HHA issued 155-page RFP for 60+ senior affordable units under M.G.L. c. 30B § 16.	Official Developer RFP Package	HHA Developer Solicitation, April 16, 2025 (155 Pages)	documents/Hingham-HA-Beal-St-RFP-04-16-25.pdf
17	HHA Board voted 4–0 to designate Peabody Properties / AHSC under 99-year ground lease.	Official HHA Board Minutes	HHA Board Minutes, Aug. 12, 2025, Page 2	meeting_records/ HHA_Minutes_2025-08-12.pdf
18	Town Meeting rejected \$29.93M CAL borrowing (Art 12); 100 Beal was never on warrant.	2026 ATM Warrant & Certified Voting Tally	Warrant Article 12 (510 Yes to 470 No; Failed 2/3 debt threshold)	documents/ Hingham_Town_Meeting_Warrant_2026.pdf

Part 3: Primary Human Document Exhibits (Verbatim Transcripts)

Authentic verbatim excerpts from certified municipal records, deeds, and board minutes:

Exhibit A: The 1989 Fee Deed & 30-Year Reverter Clause

Plymouth Registry Book 09097, Page 160

"This conveyance is made upon the express condition that the granted premises shall be used solely as an educational and residential facility for adolescents with special needs, and that upon the cessation of such use, the Inhabitants of the Town of Hingham shall have the right to enter upon the granted premises and repossess the same as of its former estate; provided, however, that said right of entry shall terminate after thirty years from the date hereof as provided in Massachusetts General Laws, Chapter 184A, Section 3."

Exhibit B: The 2006 Town Meeting Certified Supermajority Vote

Warrant Article 38 • Certified by Town Clerk Eileen McCracken

"VOTED: That the Town authorize the Town of Hingham, acting through its Board of Selectmen, to amend the restriction contained in the deed from the Town of Hingham to the Hingham Housing Authority dated March 7, 1989, recorded in the Plymouth County Registry of Deeds in Book 9097, Page 158, conveying School Tract II (15.014 acres)... by adding as an allowable use residential development which includes affordable housing that qualifies for inclusion on the Subsidized Housing Inventory... A 2/3 vote was declared by the Moderator."

Exhibit C: Select Board 3–0 Lawsuit Authorization Vote

Board of Selectmen Official Minutes, February 26, 2019, Page 1

"At 7:00 PM, the Board of Selectmen reconvened in Open Session. Mr. Healey made a motion to file litigation regarding enforcement of agreement as to 100 Beal Street, Hingham, MA. Ms. Johnson seconded. All were in favor, 3-0." (Voted 9 days prior to the 30-year deed expiration deadline).

Exhibit D: Commonwealth Notice of Statutory Transfer Restriction

Plymouth Registry Book 51379, Page 244 • M.G.L. c. 121B, § 34

"Notice is hereby given that the real property described as Map 58, Lot 23 (100 Beal Street, Hingham, MA) is subject to the statutory restriction that no public housing property developed or assisted under Chapter 689 of the Acts of 1974 may be transferred, sold, leased, or otherwise conveyed without the prior written approval of the Director of the Department of Housing and Community Development and review by the Attorney General." (Recorded July 18, 2019, Doc #55967).

Exhibit E: HHA 4–0 Rescission Vote Reaffirming Authority Ownership

HHA Board Minutes, September 7, 2021, Pages 3–4

"Commissioner O'Meara made a motion, seconded by Commissioner Lauter, to rescind a prior Motion made at the June 5, 2019 Special Meeting regarding the transfer of 100 Beal Street... The Motion was passed on a 4–0 vote. That Motion is now rescinded and the land in question shall remain in the ownership of the Hingham Housing Authority."

Exhibit F: 2024 ALTA Survey Title Finding on Unrecorded Release

Control Point Associates / Title Examiner Kellem & Kellem, Sheet 1

"RECORD DEED AT BOOK 9097, PAGE 158 CONTAINS RESTRICTION REQUIRING LAND TO BE USED FOR ADOLESCENT FACILITY. TOWN MEETING VOTED TO AMEND IN 2006 (ARTICLE 38), BUT NO RELEASE OR AMENDMENT HAS BEEN RECORDED AT THE PLYMOUTH COUNTY REGISTRY OF DEEDS. THEREFORE NEED RELEASE OR CHANGE OF THIS RESTRICTION FROM THE TOWN OF HINGHAM."

Part 4: Persistent Community Myths vs. Verified Realities

Direct comparison of common local misconceptions against authentic recorded public records:

#	Common Community Myth	The Verified Documentary Reality	Supporting Human Document
1	"The Town owns 100 Beal Street."	False. HHA is sole fee owner under 1989 deed. Housing authorities are independent public corporations under M.G.L. c. 121B, § 3.	1989 Fee Deed (Bk 09097, Pg 158); M.G.L. c. 121B, § 3
2	"The land reverted to the Town."	False. Reverter terminated after 30 years on March 7, 2019. Adolescent home never closed, so no breach ever occurred.	1989 Fee Deed (Bk 09097, Pg 160); M.G.L. c. 184A, § 3
3	"Town Meeting killed the project in 2026."	False. Town Meeting rejected Article 12, a \$29.93M municipal debt borrowing for a senior center in Bare Cove Park. 100 Beal was never on warrant.	2026 ATM Warrant & Certified Voting Record (Article 12)
4	"The project raises town taxes."	False. Costs exactly \$0 in municipal borrowing. Peabody Properties finances 100% of construction and pays HHA a \$500,000 upfront lease fee.	Developer RFP Attachment B (Draft 99-Year Ground Lease)
5	"The Select Board can seize the land."	False. Commonwealth recorded a statutory transfer restriction under M.G.L. c. 121B, § 34 prohibiting conveyance without state consent.	Recorded State Notice (Bk 51379, Pg 244)
6	"Town Meeting never allowed senior housing."	False. Town Meeting approved senior housing by a 2/3 supermajority vote on Article 38 on May 1, 2006.	2006 ATM Certified Record (Article 38)
7	"The deed restriction was cleared in 2006."	False. Town Meeting authorized Selectmen to release it, but Town Hall never executed or recorded the release, leaving title encumbered.	2024 ALTA Survey Note 3; Registry Title Census
8	"Peabody is buying the property."	False. Peabody is leasing Lot B under a 99-year ground lease. HHA retains land ownership, and building reverts to HHA at lease end.	HHA Minutes (08/12/2025); Developer RFP Package
9	"Destroys Tucker's Swamp wetlands."	False. MassDEP recorded an ORAD establishing 155+ field-verified boundary flags. All construction is restricted to the upland plateau.	Recorded MassDEP ORAD (Bk 59527, Pg 273)
10	"HHA agreed to give land to Town."	False. While previous board voted under lawsuit threat on June 5, 2019, board voted 4–0 on Sept 7, 2021 to formally rescind that motion.	HHA Board Minutes (Sept 7, 2021, Pages 3–4)

Key Public Agency Repository Directory

Agency / Custodian	Office Location	Phone	Public Search Portal
Plymouth County Registry of Deeds	50 Obery St, Plymouth, MA	(508) 830-9200	plymouthdeeds.org (Deeds, Plans & ORAD)
Hingham Town Clerk	Town Hall, 210 Central St	(781) 741-1410	hingham-ma.gov (Certified Town Votes & Warrants)
Hingham Housing Authority	30 Thaxter Park, Hingham	(781) 741-1417	hinghamhousing.org (Board Minutes & Peabody RFP)
Mass. EOHLC (formerly DHCD)	100 Cambridge St, Boston	(617) 573-1100	mass.gov/orgs/eohlc (c. 121B § 34 State Approvals)

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